

The Goa, Daman and Diu Town and Country Planning (Planning and Development Authorities) Rules, 1977

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State of Goa - Act

The Goa, Daman and Diu Town and Country Planning (Planning and Development Authorities) Rules, 1977

GOA

India

The Goa, Daman and Diu Town and Country Planning (Planning and Development Authorities) Rules, 1977

Rule

THE-GOA-DAMAN-AND-DIU-TOWN-AND-COUNTRY-PLANNING-PLANNING-AND-DEVELOPMENT-AUTHORITIES-RULES-1977 of 1977

Published on 10 March 1977

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The Goa, Daman and Diu Town and Country Planning (Planning and Development Authorities) Rules, 1977

Published vide Notification No. 4-40-74-UDD, dated 10th March, 1977

In exercise of the powers conferred by sub-section (2) of section 140 of the Goa, Daman and Diu Town and Country Planning Act, 1974 (Act 21 of 1975) and all other powers enabling it in that behalf, the Government of Goa, Daman and Diu hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Goa, Daman and Diu Town and Country Planning (Planning and Development Authorities) Rules, 1977.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless the context otherwise requires.

(1)

'Act' means the Goa, Daman and Diu Town and Country Planning Act, 1974 (Act 21 of 1975);

(2)

'Chairman' means the Chairman of a Planning and Development Authority;

(3)

'Form' means a Form appended to these rules;

(4)

'Member' means a member of a Planning and Development Authority and includes the Chairman thereof;

(5)

'Member Secretary' means the Member Secretary of a Planning and Development Authority;

(6)

'Section' means the section of the Act;

(7)

The words and expressions used in these rules but not defined herein shall have the same meanings as are respectively assigned to them in the Act.

3.

Term of office and condition of service of Chairman and members of Planning and Development Authority.

(1)

Save as otherwise provided in these rules, the Chairman and members of a Planning and Development Authority shall hold office for a period of two years from the date [of their appointment by notification:]

[Substituted by (Fourth Amendment) Rules, 1984 published in the Official Gazette, Series I No. 17 (Ext.) dated 26-7-1984.]

[unless the term of office is terminated earlier by the Government]

[Inserted vide Notification No. 4-2-2-92-UDD dated 15-4-1992, published in the Official Gazette, Series I No. 5 dated 30-4-1992.]

:

Provided that the Government may, at the request of a Planning and Development Authority, by a notification in Official Gazette, extend the term of office of the aforesaid Chairman and members by such period or periods not exceeding one year at a time as it deems fit:

Provided further that a member who has been appointed from amongst the members of the local authority shall not continue as a member of the Planning and Development Authority, if he ceases to be a member of the local Authority.

(2)

If the Government is of opinion that any member is guilty of misconduct in the discharge of his duties or is incompetent or is incapable of performing his duties as such member, or should for any other good and sufficient reason be removed, the Government may after giving the member an opportunity of showing cause against his removal, remove him from the office.

(3)

A member shall cease to be a member of a Planning and Development Authority, if he-

(i)

is declared to be of unsound mind by a competent court; or

(ii)

is adjudged insolvent; or

(iii)

has been convicted by any court in India for any offence and sentenced to imprisonment for not less than two years; or
(iv)

is absent, without the permission of the Planning and Development Authority, in writing, from three consecutive meetings thereof.

(4)

A member, who is directly or indirectly concerned or interested in any proposal before the Planning and Development Authority, or is professionally interested on behalf of a principal or other person in any matter concerning the Planning and Development Authority, or is engaged at the time in any proceedings against the Planning and Development Authority, shall, at the earliest possible opportunity, disclose the nature of his interest to the Planning and Development Authority and the disclosure shall be recorded in the minutes of the Planning and Development Authority. The said member shall not be present at any meeting of the Planning and Development Authority when such proposal is discussed, unless his presence is required by other members for the purpose of eliciting information, but no member so required to be present shall vote on any such proposal:

Provided that, a member shall not be deemed to be concerned or interested as aforesaid by reason only of his being a share-holder of a company concerned in such proposal:

Provided further that a member shall not be disqualified under this sub-rule if he is engaged for the Planning and Development Authority without receiving any remuneration therefore or appears and conducts his own case in a Court of Law or before any authority against the Planning and Development Authority irrespective of whether such a member is a Legal Practitioner by profession or not.

(5)

[Honorarium, allowance and other conditions of the service of the Chairman of a Planning and Development Authority. -

(1) The Chairman shall be paid a fixed monthly honorarium of Rs. 500/-.

(2)

The other terms and conditions of service of the Chairman, including allowance payable to him shall be such as may be specified in his order of appointment and in the absence of being so specified, such terms and conditions shall be as far as may be, the same as are applicable to a Class I Officer of the Government.

(3)

Notwithstanding anything contained in sub-rules (1) and (2) where a Government servant is appointed as Chairman, the terms and conditions of his service shall be such as may be specified by the Government from time to time.

(6)

Allowances payable to members of a Planning and Development Authority for attending its meeting. - The members of a Planning and Development Authority shall be entitled to travelling and daily allowances at the following rates:-

(i)

the Town Planning Officer and any other member who is a Government servant may draw the travelling and daily allowances which he may be entitled to claim for travelling on official duties according to his grade under the Supplementary Rules and Fundamental Rules];

(ii)

[a non-official member shall be paid such sitting fee as may be fixed by Government, by order, from time to time.]

[Substituted by (Third Amendment) Rules, 1984.]

4.

Manner of filling casual vacancies.

- In the event of a vacancy in the office of any member of a Planning and Development Authority, the vacancy shall be filled by the Government, and the person so appointed shall hold office so long only as the member in whose place he is appointed would have held office, if the vacancy had not occurred.

5.

Procedure to be followed in regard to transaction of business at meetings of Planning and Development Authority.

(1)

The members of a Planning and Development Authority shall meet at such times and places as the Chairman may determine.

(2)

[Ten days]

[Substituted vide Notification No. 21/1/TCP/2000/773 dated 9-3-2000.]

notice at least specifying the place, date and the hour of the meeting and the agenda shall be given to the members, but non-receipt of such a notice by any member shall not invalidate the proceedings of the meeting.

(3)

The quorum necessary for the transaction of business at any meeting of a Planning and Development Authority shall be one-half of the total number of members of the Planning and Development Authority. If the requisite number of members is not present the meeting shall stand adjourned for 10 minutes and held as an adjourned meeting, not requiring a quorum.

(4)

The order in which the business shall be transacted at any meeting shall be determined by the presiding authority.

(5)

Minutes containing the names of the members present and others who attend the meetings of a Planning and Development Authority under the provision of the Act, and of the proceedings at each meeting shall be kept in English in a minute book to be maintained for this purpose. The names of the members voting for or against any proposal or motion shall be recorded in the minute book. The minutes shall be signed as soon as practicable, by the presiding authority of such meeting. Such minutes shall be placed before the next meeting of the Planning and Development Authority and shall, after confirmation, be signed by the presiding authority of such meeting, and shall be open to inspection by any member during office hours.

6.

Temporary Association of persons with Planning and Development Authority for particular purposes.

(1)

A Planning and Development Authority may associate with itself any person whose assistance or advice, it may consider necessary in performing any of its functions under the Act.

(2)

The person so assisting or advising a Planning Development Authority shall be given an appointment letter, mentioning the purpose therein for which such association has been made and the period for which association may last and the terms and conditions governing such association.

(3)

If the person associated with the Planning and Development Authority under sub-rule (1) happens to be a non-official resident in Goa, he shall be entitled to draw T. A. and D. A. according to rule 190 of S. Rs. as amended from time to time.

(4)

Notwithstanding anything contained in sub-rule (3), if such person is a Government servant or an employee in a Government undertaking he shall be entitled to travelling and daily allowances only at the rates admissible under the relevant rules applicable to him.

7.

Staff of Planning and Development Authority.

(1)

The number of officers and staff to be appointed by a Planning and Development Authority shall be such as may be approved by the Government in this behalf.

(2)

The designations, qualifications, pay, allowances and method of recruitment of the officers and staff of a Planning and Development Authority shall be such as may be approved by the Government in this behalf and the terms and conditions of service shall be such as are applicable to a Government Servant.

8.

Powers and duties of Chairman of Planning and Development Authority.

(1)

The Chairman shall have overall control over the day to day activities of the Planning and Development Authority:

(2)

The Chairman may undertake tours within the jurisdiction of the Planning and Development Authority after obtaining prior permission of the Planning and Development Authority:

[Provided that the Chairman may by order delegate any of his powers or functions under the Act or these rules to the Vice-Chairman subject to such restrictions and conditions as may be specified in the order:

Provided further that whenever the Chairman is unable to discharge his functions owing to absence, illness or any other cause or in the event of any vacancy in his office by reason of death, resignation, disqualification or otherwise, the Vice-Chairman shall exercise the powers and perform the functions of the Chairman under the Act or these Rules until the date on which the Chairman resumes his duties or a new Chairman assumes his office.]

[Proviso inserted by (Second Amendment) Rules, 1984 published in the Official Gazette, Series I No. 9 dated 31-5-1984.]

9.

Powers and duties of Member Secretary of Planning and Development Authority.

- The Member Secretary shall be subordinate to the Chairman and shall, subject to the control of the Chairman exercise the following powers, namely:-

- (i)
the Member Secretary shall be in charge of all the confidential papers of the Planning and Development Authority and shall be responsible for preserving them;
- (ii)
the Member Secretary shall produce such papers whenever so directed by the Chairman;
- (iii)
the Member Secretary shall make available such papers to any member of the Planning and Development Authority;
- (iv)
the Member Secretary shall be entitled to call for the services of any officer or employee of the Planning and Development Authority, and files, papers and documents for study as also to carry out inspection at any time including checking of accounts, vouchers, bills and other records and stores pertaining to the Planning and Development Authority;
- (v)
the Member Secretary may withhold any payment:
Provided that as soon as may be after such withholding of payment the matter shall be placed before the Planning and Development Authority for its approval;
- (vi)
the Member Secretary shall make all arrangements for holding meetings of the Planning and Development Authority and meeting to the Committees constituted by the Planning and Development Authority;
- (vii)
all orders or instructions to be issued by the Planning and Development Authority shall be over the signature of the Member Secretary;
- (viii)
the Member Secretary shall authorise, sanction or pass all payments against allotments made or estimates sanctioned by the Planning and Development Authority;
- (ix)
the Member Secretary shall write and maintain confidential reports of all Class I and Class II Officers of the Planning and Development Authority and shall get them countersigned by the Chairman;
- (x)
the Member Secretary shall countersign the confidential reports of all the Class III employees of the Planning and Development Authority;
- (xi)
(a)
the Member Secretary shall sanction the annual increments of Class I and Class II Officers of the Planning and Development Authority:
Provided that the increment of Class I and Class II Officers shall be withheld only with the approval of the Chairman;
- (b)
the annual increments of other employees of the Planning and Development Authority not referred to in sub-clause (a) shall be sanctioned by officers authorised in this behalf by the Member Secretary;

(xii)

the Member Secretary shall exercise such other powers and perform such other functions as may be delegated to him from time to time either by the Planning and Development Authority or by the Chairman.

10.

Form in which land use map and land use register to be prepared.

(1)

The land use map shall consist of an index map which shall be drawn to a scale not smaller than one centimetre to fifty metres. The index map shall show the boundaries of the plots, the structures on the plot and show areas used for various uses such as:-

Main-Group

Sub-Groups

Vacant

Partly built but unoccupied.

Residential

Single family.

Two family.

Multi-family.

Holiday homes and Boarding houses of permanent nature such as

hostels but not including public assistance-institutions

providing residential accommodation like Dharmashala, etc.

Commercial

Retail trade.

Wholesale trade.

Warehouses and storage.

Offices including Government offices and Banks.

Restaurants, hotels and transient boarding houses including

public assistance-

institutions providing residential accommodation like

Dharmashala, tourist homes, etc.

Cinema and other places of public assembly run on a commercial basis.

Professional establishments.

Industrial

Service Industry.

Light Industry.

Extensive Industry.

Heavy Industry.

Noxious Industry.

Transport and Communication

Railway yards.

Railway stations and Sidings.

Roads and Road transport. Depots and Parking Areas.

Dockyard, Jetties and Piers. Airports and Air Stations.

Telegraph Offices, Telephones and Telephone Exchanges, etc.

Broadcasting Stations.

Public Utilities

Water supply installations including treatment plants.

Drainage and Sanitary Installations including Disposal Works.

Electric Power Plant, HT & LT transmission lines

sub-stations, etc.

Gas Installations and Gas-works.

Public & Semi Public Uses

Government Administrative Centres, Secretariat, District Offices, Law Courts, Jails, Police Stations, Governor's Residence, Educational, Cultural & Religious Institutions, Medical & Health Institutions.
Cultural Institutions like Theatres, Opera Houses, etc. of a predominantly non-commercial nature.
Land belonging to Defence.

Open Spaces

Sports Grounds, Stadia, Playgrounds, Parks.
Other Recreational uses.
Cemeteries, Crematoria, etc.

Agricultural Land

Market Garden.
Orchards & Nurseries, Land under Staple crops.
Grazing land and Pastures.
Forest land.
Morshy land.
Barren land.
Land under water.

(2)

The form in which land use register is to be prepared shall be in form 'A'.

11.

Form and content of Development Plan.

(1)

The Development Plan shall consist of an index map and a written statement supplemented by other maps, charts, illustrations and documents as may be necessary.

(2)

The index map shall be to a scale not smaller than one centimetre to fifty metres, and shall show the areas or locations of various proposals and other particulars specified in sections 30 and 32 as may be appropriate to the Development Plan.

(3)

Other maps and documents shall further illustrate and amplify the proposals of the Development Plan and the maps shall be drawn to a scale not less than one centimetre to ten metres.

(4)

The written statement shall describe in detail the report of the surveys conducted, their analysis and findings and will describe in brief the main proposals of the Development Plan made in the index map and the other maps; and the stages of the development programme for executing the Development Plan.

12.

Time limit for directing modifications in Development Plan by Government.

- The time within which modifications may be directed by the Government to be made in the Development Plan shall be one hundred and eighty days from the date of its submission to the Government under sub-section (1) of section 34.

13.

Application for permission for development.

(1)

Every application under section 44 for permission to carry out any development shall be made in Form 'B'.

(2)

The Form 'B' shall be accompanied by the following documents, namely:-

(a)

in the case of building operation- a site plan in quadruplicate drawn to a scale of not less than one centimetre to five metres showing therein the boundaries of the site, the width of the existing streets, if any, direction of the North, existing

buildings, or structures on, over or under the site or projecting beyond the site, if any, the position of the building or buildings the applicant intends to erect on the site and those within 15 metres around the site, the means of access and its width from the street to the site, the dimensions of front, rear and side setbacks, if any, a clear indication of the area of the plot, plot coverage and the floor area ratio and also a detailed plan in quadruplicate, showing the plan section and elevations of the proposed development work;

(b)

in the case of engineering, mining, quarrying operations - a site plan in quadruplicate drawn to a scale of not less than one centimetre to ten metres showing therein the boundaries of the site, direction of the North, existing buildings or structures on, over or under the site or projecting beyond the site the means of access with its width from the street to the site, and the exact nature of the operations the applicant intends to carry out on the site;

(c)

in the case of making of any material change in use of any building or land - a site plan in quadruplicate drawn to a scale of not less than one centimetre to five metres, showing therein the boundaries of the site, direction of the North, existing buildings or structures on, over or under the site or projecting beyond the site, if any, the means of access from the street with its width to the site and the exact nature of the change in use of a building or land proposed and its extent;

(d)

in the case of sub-division of any land or layout of private street - a site plan in quadruplicate drawn to a scale of not less than one centimetre to five metres, showing therein the boundaries of the site, direction of the north, existing buildings or structures on, over or under the site or projecting beyond the site, if any, the means of access from the street to the site, the dimensions of each of the proposed sub-divisions, width of the proposed streets, dimensions and area of open spaces to be provided in the layout plan for the purposes of garden or recreation or like purpose and the details of proposed land use.

Note:- All plans shall be duly signed by the owner and the architect registered with the Planning and Development Authority and shall indicate their names, addresses, qualifications and registered numbers, allotted by the Planning and Development Authority.

(e)

cash receipt of the fees payable to the Planning and Development Authority for permission under these rules.

14.

[Manner of filing appeals under section 45 and section 52.

[Substituted by the Amendment Rules, 2010 published in the Official Gazette, Series I No. 38 dated 16-12-2010 and thereafter vide Amendment Rules, 2011, published in Official Gazette, Series I No. 7 dated 19-5-2011.]

(1)

Every appeal under sections 45 and 52, shall be in writing addressed to the Chairman or the Member Secretary of the Board and shall specify the grounds of appeal and the point which the ruling of the Board is required.

(2)

Every appeal, except made on the grounds applicable in the case of section 45(1) (b), shall be submitted in thirty hard copies and one soft copy, by-

(a)

Copies of the application made to the Planning and Development Authority;

(b)

Copies of all relevant plans, documents and particulars submitted with the applications;

(c)

True copies of the order or notice of the Planning and Development Authority, as the case may be;

(d)

Copies of all other relevant correspondences with the Planning and Development Authority.

(3)

Every appeal, except made on the grounds applicable in the case of section 45(1) (b), shall bear a fee of rupees five hundred.]

[Inserted by Goa, Daman and Diu Town and Country Planning (Planning and Development Authorities) (First Amendment) Rules, 1979, published in the Official Gazette, Series I No. 2 dated 12-4-1979.]

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15.

Manner of serving acquisition notice under Act.

- Any person serving the acquisition notice under section 47(1) shall submit the same in writing to the Secretary, Urban Development, Secretariat, Panaji, Government of Goa, Daman and Diu alongwith the documents mentioned in clauses (a) to (d) of rule 14 (2) and specify the points in detail how the claim is supported, mentioning therein the nature of his interest in the land.

16.

Manner in which claim for compensation under section 48 is to be made.

- Any person claiming compensation under section 48 of the Act may put his claim in writing to the Planning and Development Authority within ninety days from the date of receipt of an order in appeal under section 45, supporting the claim in detail and accompanied by the documents mentioned in clauses (a) to (d) of sub-rule (2) of Rule 14.

17.

Exemption from levy of development charges payable.

- The following plots shall be exempted from the levy of development charges payable under the Act. -

(a)

all plots reserved for public and semi-public purposes in the Development Plan;

(b)

all plots owned by any Department of the Central or any State or Union Territory Government or any local authority.

18.

Procedure to be followed in summarily evicting persons under section 80.

(1)

If a Planning and Development Authority is of the opinion that any person is in unauthorised occupation of any land and that he should be evicted, the Planning and Development Authority shall issue in the manner hereinafter provided a notice in writing calling upon all persons concerned to show cause why an order of eviction should not be made.

(2)

The Notice shall-

(a)

Specify the grounds on which the order of eviction is proposed to be made; and

(b)

Require all persons concerned, that is to say all persons who are, or may be in occupation of, or claim interest in land, to show cause, if any, against the proposed order on or before such date as is specified in the notice, being a date not earlier than 10 days from the date of issue thereof.

(3)

The Planning and Development Authority shall cause the notice to be served either by tendering or delivering a copy or sending such copy by post to the person on whom it is to be served, or his authorised agent or if service in manner aforesaid cannot be made, by affixing a copy thereof at his last known place of public resort in the village in which the land to which the notice relates to is situated.

(4)

No such notice shall be deemed void on account of any error in the name or designation of any person or in the description of any person, or in the description of any land referred to therein, unless such error has produced substantial injustice.

(5)

If, after considering the cause, if any, shown by the person in pursuance of a notice and any evidence he may produce in support of the same and after giving him a reasonable opportunity of being heard, the Planning and Development Authority is satisfied that the person is in unauthorised occupation, the Planning and Development Authority may make an order of eviction, for reasons to be recorded therein directing that the land, shall be vacated in such date as may be specified in the order, by all persons which may be in occupation thereof or any part thereof and cause a copy of the order to be served in the manner as specified in sub-rule (3).

(6)

If any person refuses or fails to comply with the order of eviction within 30 days of the date of its issue under sub-rule (5), the Planning and Development Authority or any officer duly authorised by the Planning and Development Authority

in this behalf may evict that person from and take possession of the land and may, for that purpose use such force as may be necessary.

19.

Manner in which draft variation of final scheme to be published under sub-section (2) of section 81 and particulars to be contained in such variation.

(1)

The draft variation shall be first submitted to the Government alongwith a plan showing the area where the variation is proposed and the nature of variation proposed from the original proposal together with the plan showing the original proposal included in the final scheme.

(2)

There shall also be an explanatory note containing the reasons which have given rise to the variation.

(3)

The draft of such variation shall be published in the Official Gazette and in one or more local newspapers.

20.

Manner in which an application for assessment of development charge under section 102 to be made.

- Any person who intends to apply for assessment of the development charge under section 102 of the Act shall apply in Form 'C'.

20A.

[Rates of development charges.

[Rule 20-A inserted vide Fifth Amendment Rules, 1984, further amended vide Sixth Amendment Rules, 1985 & thereafter substituted vide Seventh Amendment Rules, 1987 and lastly vide (Tenth Amendment) Rules, 2002, published in Official Gazette, Series I No. 42 dated 16-1-2003.]

- The development charges that may be levied by a Planning and Development Authority shall be as follows:-

(i)

For Sub-Division/Institution of use

Type of land use

Rate per sq. mt. of land put under use

F.A.R.

upto 1.00

Above 1.00 but upto 1.20

Above 1.20 but upto 1.80

Above 1.80 but upto 2.00

Above 2.00 but upto 2.50

Rs.

Rs.

Rs.

Rs.

Rs.

(1) Residential

2

2.5

3

3.5

4

(2) Commercial

4

4.5

5

10

15

(3) Industrial

3
3.5
4.5
5
6
(4) Institutional

2
2.5
3
3.5
4

(5) Others

2
5
3
3.5
4

Revision of plan/renewal of Development Order shall be charged at 50% of the development charge paid at the time of issue of Development Order. This shall exclude charges paid towards institution of use:

Provided that development charges for sub-division/institution of use shall be restricted to the area of the plot proposed to be used. This benefit will be available only on production of sufficient evidence of the fact that only a particular portion of the plot is to be used. If no such evidence is available or produced, it will be presumed that the entire plot is to be put to use.

(ii)

For change in land use

Type of land use after change

Rate per sq. mt. of land put under use

F.A.R.

upto 1.00

Above 1.00 but upto 1.20

Above 1.20 but upto 1.80

Above 1.80 but upto 2.00

Above 2.00 but upto 2.50

Rs.

Rs.

Rs.

Rs.

Rs.

(1) Residential

4.00

5.00

7.50

8.00

10.00

(2) Commercial

10.00

12.00

14.00

16.00

20.00

(3) Industrial

8.00
10.00
12.00
15.00
18.00

(4) Institutional

4.00
5.00
7.50
8.00
10.00

(5) Others

4.00
5.00
7.50
8.00
10.00

Revision of plan/renewal of Development Order shall be charged at 50% of the development charge paid at the time of issue of Development Order. This shall exclude charges paid towards institution of use:

(iii)

For construction of buildings/development of land

Land use

Rate per sq. mt. of floor area

(1)

Residential

Rs. 4.00

(2)

Commercial

Rs. 12.00

(3)

Industrial

Rs. 10.00

(4)

Institutional

Rs. 4.00

(5)

Others

Rs. 4.00

Revision of plan/renewal of Development Order shall be charged at 50% of the development charge paid at the time of issue of Development Order. This shall exclude charges paid towards institution of use:

(iv)

For change in an existing building

The development charges for making any material change in an existing building shall be levied only if reconstruction or extension is to take place. This will be related to the floor area rebuilt or extended. These rates shall be the same as those prescribed for new construction/development of land.

(v)

For mining, quarrying, etc. operation

Land use

Rate per sq. mt.

(1)

Mining

Rs. 10.00

(2)

Quarrying

Rs. 10.00

(3)

Cutting of hill

Rs. 10.00

(4)

Any other development not covered under the above categories

Rs. 10.00

(vi)

Linear development

Land use

Rate per running metre

Construction of walls, gates, roads, pipelines, drains and other development of linear nature

Rs. 5.00

Provided that if linear development accompanies the building activity for which development charges have already been paid, no separate development charges shall be levied.]

20B.

[Time and manner of filing appeals under section 103.

[Inserted by the Goa, Daman and Diu Town and Country Planning (Planning and Development Authorities) (Fifth Amendment) Rules, 1984.]

(1)

Every appeal shall be preferred within two months from the date of communication of the order appealed against:

Provided that the Board may entertain the appeal after the expiry of the said period of two months, if it is satisfied that the appellant was prevented by sufficient cause for not preferring the appeal within such period.

(2)

The provisions of sub-rules (1) and (2) of rule 14 shall, mutatis mutandis, apply to every such appeal.]

21.

Depositing of money belonging to Planning and Development Authority.

- The sum of money that may be kept in a current account by a Planning and Development Authority shall not exceed Rs. 500,000/- (Rupees five hundred thousand).

22.

Budget.

- The Budget of a Planning and Development Authority shall be prepared in Form 'D'. The Budget so prepared for any financial year shall be submitted to the Government in the month of January preceding the commencement of the said financial year. Six copies each of the budget shall be prepared and shall be sent to the Board and the Government.

23.

Maintenance of Accounts.

(1)

Every Planning and Development Authority shall maintain in Form 'E' an account of its transactions in two sections, namely 'Revenue' and 'Capital' under the head 'Planning and Development Authority Fund'.

(2)

A summary of the Planning and Development Authority Fund account for every year shall be submitted to the Government through the Chief Town Planner not later than the 1st June of the year following and a copy thereof shall be sent to the Resident Audit Officer.

24.

Pension and Provident Funds of Officers and Employees of Planning and Development Authority.

- Officers and Employees of a Planning and Development Authority shall be governed by Civil Service Regulations and Central Civil Services (Pension) Rules, 1972 and General Provident Fund (Central Services) Rules, 1960.

25.

Certified copies and fees payable therefor.

- Certified copies of the following documents may be granted on payment of the fees mentioned against these items.

Rs. Np.

1.

Plan showing the limits of the planning area ...

10.00

per copy

2.

Land Use Map

50.00

-do-

3.

Extract from Land Use Register

5.00

-do-

4.

An Outline Development Plan...

50.00

-do-

5.

A Comprehensive Development Plan ...

50.00

-do-

6.

A Town Planning Scheme

25.00

-do-

7.

An Order under section 44

5.00

-do-

8.

An Order under section 45

5.00

-do-

9.

An Order under section 50 ...

5.00

-do-

Form 'A'

[See Rule 10 (2)]

(Form Land Use Register under section 26 of the Goa, Daman and Diu Town and Country Planning Act, 1974)

Land Use Survey Tabulation Sheet

Postal Address

Survey Area; Block; Survey.

Code No. (See B. M.)

Plot Size and Frontage

Plot Area

No. of Structures

Structure No.

No. of Storeys

A B

Ground Floor

Built up Area and Land Use

L U

A B

First Floor

L U

A B

Second Floor

L U

A B

Third Floor

L U

A B

Fourth Floor

L U

A B

Fifth Floor

L U

Age, Type & condition of Structure

Assessed Services Valuation

Land

Structure

Total

Water

Drainage

Electricity

Other Services

Plot

F. S. I.

Block

F. S. I.

Remarks

Form 'B'

(See Rule 13)

Application for permission for development under section 44 of the Goa, Daman and Diu Town and Country Planning Act, 1974

From (Name of the owner of land)

Address

To

The Planning Authority.

Sir,

I intend to carry out the undermentioned development in the site or plot of land, Town and Revenue Survey No. on Street or road named in the ward or Division, in accordance with the provisions of section 44 of the Goa, Daman and Diu Town and Country Planning Act, 1974, and rule 13 of the Planning and Development Authority Rules, 1977.

Particulars of proposed development:-

2. I forward herewith:

(a)

[A site plan.]

[Strike out which is not applicable.]

(b)

[A detailed plan (in quadruplicate).]

[Strike out which is not applicable.]

(c)

[An extract of record of rights/property register card (any other document showing ownership of land to be specified).]

[Strike out which is not applicable.]

(d)

[A cash receipt of the fees paid to the Planning and Development Authority.]

[Strike out which is not applicable.]

3. I request that the proposed development may be approved and that permission may be accorded to carry out the development.

Signature of the Licensed Architect.

Date:

Signature of the owner of the land.

Form 'C'

(See Rule 20)

Form of application for the assessment of development charges

The Goa, Daman and Diu Town and Country Planning Act, 1974 (Act 21 of 1975)

To

.....

.....

.....

Sir,

I hereby give notice under sub-section (1) of section 102 of the Act that I intend to carry out/I am carrying out/I have carried out development mentioned below and request you to assess the development charge, if any, payable in respect thereof under section 100 of the Act.

1. Nature of Development:

2. Location:

Date

.....

Signature of owner

Address

Form 'D'

(See Rule 22)

Form of Budget

Abstract figures of the Budget of Planning

and Development Authority for the year 19..... 19

Accounts of past year 19.....

19.....

Sanctioned Estimates for the current year

19..... 19.....

Revised estimates for the current year 19 - 19

Budget Estimates for the year

19..... - 19

Actual for 8 months

Probable receipts for 8 months

Total

Opening balance on 1-4-19

Ordinary Section

Capital Section

Receipts

Ordinary Section

Capital Section

Total Receipts

Expenditure

Ordinary Section

Capital Section

Total Expenditure

Closing balance as on 31-3-19

Ordinary Section

Capital Section

Form 'E'

(See Rule 23)

Planning and Development Authority Fund Account

Expenditure

Receipts

Ordinary Section

Ordinary Section

1.

Town Planning Act Schemes-

1.

Town Planning Act Schemes-

Rs.

Rs.

(1)

Staff

(1)

Rent of Land

(2)

Allowances, pensionary contribution and cost of conveyance or
hire of vehicles, etc.

(2)

Ground Rent

(3)

Survey charges

(3)

Produce of Lands

(4)

Contingencies and equipment renewals

(4)

Licence fees, etc.

(5)

Law charges

(5)

Betterment contributions

Total - Running charges

(6)

Interest on loans

(6)	
Interest on investments	
(7)	
Stationery, Printing and Notification expenses, cost of preparation of maps, etc.	

(7)	
Law charges recovered	
(8)	
Sundry receipts including sale proceeds of copies of maps and schemes	

A.	
Total- Ordinary receipts	

A.	
Total - Ordinary charges	

A.	
Net total- Ordinary section (surplus or deficit)	
.....	

Expenditure	
Receipts	
Capital Section	
Capital Section	
1.	
Town Planning Act Schemes-	
1.	
Town Planning Act Schemes-	
Rs.	
Rs.	
(1)	
Acquisition of lands, buildings, etc.	
(1)	
Government grants	
(i)	
Roads and lanes	
(2)	
Contribution from	
(ii)	
Other purposes	
(a)	
Government Departments ...	
(2)	
Works of improvement-	
(b)	
Other local authority	
(i)	
Raising level	
(c)	

Private persons	
(ii)	
Road forming	
(3)	
Sale proceeds of lands, buildings and equipments	
(iii)	
Culverts	
(4)	
Loans	
(iv)	
Drains	
(5)	
Investment realized	
(v)	
Lighting	
(6)	
Contribution from Municipal funds	
(vi)	
Water supply.....	
(i)	
General Account?Ordinary ..	
(vii)	
Latrines	
(ii)	
Elementary Education Account	
(viii)	
Schools	
(iii)	
Water Supply and	
Drainage Account	
(ix)	
Markets, etc.	
(iv)	
Lighting Account	
(x)	
Other works	
(v)	
Remunerative enterprises (Land development) account ..	
(3)	
Repaying of loans (sinking fund charges)	
(vi)	
Any other account	
(4)	
Investment	
(7)	
Recoveries of advances	
(5)	
Compensation for Injurious affections	
(8)	
Recoveries of expenses of enforcement under section 47(2) ...	
(6)	

Advances made

(9)

Contribution from surplus in ordinary section

.....

(7)

Miscellaneous

B.

Total- Capital Receipts

(i)

Cost of preparation of scheme, including special surveys

.....

*Grand Total - Ordinary and Capital receipts

(8)

Expenses of enforcement under section 47(2)

B.

Total - Capital Charge

D. Net Total Planning and Development Authority Fund

Account (surplus or deficit).

*Grand Total -Ordinary and Capital Charges

* The contribution from the surplus in the ordinary section should not be included.

Related AI tags, queries and research notes

Translation